BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH III

Coram: SHRI. P.S.N. PRASAD, MEMBER (JUDICIAL)

SHRI NARENDER KUMAR BHOLA, MEMBER (TECHNICAL)

CA (CAA)- 93/ND/2021

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

AND

In the matter of Composite Scheme of Arrangement

Between

BLOGMINT DIGITAL PRIVATE LIMITED

(Transferor Company No. 1/Applicant No.-1)

and

THOUGHTBUZZ INDIA PRIVATE LTD.

(Transferor Company No. 2/ Applicant No.-2)

and

IGNITEE DIGITAL SERVICES PRIVATE LTD.

(The Demerging Company/ Applicant No.- 3)

and

To The New Private Limited

Formerly known as Intelligrape Software Private Limited

(Formerly also known as Tangerine Digital Entertainment Private Ltd.)

(The Transferee Company/ Resulting Company/ Applicant No. 4)

And

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

MEMO OF PARTIES

1. BLOGMINT DIGITAL PRIVATE LIMITED
Company Incorporated under Companies Act, 2013
Having its registered office at:
Regus Elegance, 2F Elegance , Jasola District Centre,
Old Mathura Road, New Delhi, South Delhi-110025

..... TRANSFEROR COMPANY - (APPLICANT COMPANY-1)

2. THOUGHTBUZZ INDIA PRIVATE LIMITED
Company Incorporated under Companies Act 2013
Having its registered office at:
2F, Elegance, Jasola District Centre
Old Mathura Road, New Delhi, South Delhi-110025

...TRANSFEREE COMPANY - (APPLICANT COMPANY-2)

3. IGNITEE DIGITAL SERVICES PRIVATE LIMITED
Company Incorporate under Companies Act 1956
Having its registered office at:
E-7/12, Basement,
Malviya Nagar, New Delhi-110017
... DEMERGING COMPANY/ APPLICANT COMPANY-3

4. To the New Private Limited
Company Incorporated Under the Companies Act, 1956
Having its registered office at Regus Elegance,
2F Elegance, Jasola District Centre, Old Mathura Road,
New Delhi, South Delhi-110025
...Transferor Company/ Applicant Company No. 4

For the Applicants: Mr. Saurabh Kalia, Ms. Kanvi Nagpal
(Advocates for the Applicants)

O R D E R

Delivered on: 01.10.2021

Per- P.S.N. PRASAD, MEMBER (JUDICIAL)

1. This is an application filed by, Blogmint Digital Private Limited (for brevity "Transferor Company Number 1"), jointly with Thoughtbuzz India Private

Limited (for brevity "Transferor Company No. 2") and Ignitee Digital Services Private Limited (The Demerging Company Applicant No. 3) and to the new private limited formerly known as Intelligrape Software Private Limited, formerly also known as Tangerine Digital Entertainment Private Limited (the Transferee Company/ Resulting Company/ Applicant Number 4) jointly under section 230-232 of Companies Act, 2013, and its other applicable provisions read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the applicant companies to consider and approve the composite scheme of arrangement. The said Scheme is also annexed as Annexure "A-32" to the application. The applicants have preferred the instant application for the following purpose as is evident, inter alia, from the reliefs sought in the Application, namely:

a) Appropriate orders for dispensing with the requirement of convening and holding the meetings of the equity shareholders of the Transferor Company No. 1/ Applicant Company No. 1, Transferor Company NO. 2/ Applicant Company Number 2, Demerging Company / Applicant Company Number 3 and Transferee Company (Resulting Company) Applicant Company Number 4 and also to dispense with the requirement of issue and publication of notices for the same.

b) Appropriate orders for dispensing with the requirement of convening and holding the meetings of the Unsecured Creditors of the Transferor Company number 1/ Applicant Company number 1, Transferor Company Number 2/ Applicant Company

number 2, Demerging Company/ Applicant Company Number 3 and Transferee Company (Resulting Company) Applicant Company number 4 and also to dispense with the requirement of issue and publication of notices for the same.

c) Appropriate orders for dispensing with the requirement Dispense with the requirement of convening and holding the meetings of the preference shareholders of demerging company/ applicant company number 3 and Transferee Company (Resulting Company) applicant Company number 4 and also to dispense with the requirement of issue and publication of notices for the same (as there are no Preference Shareholders).

d) Appropriate orders for dispensing with the requirement of convening and holding the meetings of the Secured Creditors of the Transferor Company No. 1/ Applicant Company No. 1, Transferor Company No. 2/ Applicant Company No. 2, Demerging Company/ Applicant Company No. 3 and also to dispense with the requirement of issue and publication of notices for the same (as there are no Secured Creditors).

e) Appropriate orders for dispensing with the requirement of convening and holding the meetings of the Secured Creditors of the Transferee Company (Resulting Company)/ Applicant Company No. 4 since the Transferee Company (resulting company)/ Applicant Company No. 4 since the Transferee Company (resulting company) applicant Company No. 4 has only

one (01) Secured Creditor who has given the consent to the proposed scheme.

f) The Transferor Company No. 1/ Applicant Company no. 1, Transferor Company No. 2/ Applicant Company No. 2, Demerging Company/ Applicant Company No. 3 and Transferee Company (Resulting Company) Applicant Company no. 4 be permitted to file sanctioning the Scheme of Amalgamation within 7 days from the receipt of the order passed by the Hon'ble Tribunal on the present application.

g) Passing such other and further orders as this Hon'ble NCLT may deem fit and proper in the facts and circumstances of the case.

2. it is also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of this Tribunal and falling within the domain of Registrar of Companies, NCT, New Delhi.

3. In relation to Blogmint Digital Private Limited (Transferor Company No. 1. It is a private limited company incorporated on 28th July 2015 having CIN U72300DL2015FTC283232. The Authorized share capital for the year ended 31st March 2020 is Rs 2,00,00,000/- divided into 20,00,000 equity shares of Rs 10 each. The Issued, Subscribed and paid-up share capital is Rs 110,65,520/- divided into 11,06,552 equity shares of Rs 10 each fully paid up.

4. In relation to Thoughtbuzz India Private Limited (Applicant Company No. 2). It is a private limited company incorporated 04th August 2015 having

CIN U72900DL2015FTC283576. The Authorised share capital as on 31st March 2020 is Rs 2,00,00,000/- divided into 20,00,000 equity shares of Rs 10 each. The Issued, Subscribed and Paid-up share capital is Rs 8,09,380/- divided into 80,938 equity shares of Rs 10 each, fully paid up.

5. In relation to Ignitee Digital Services Private Limited (Demerging Company/ Applicant Company No. 3). It is a private limited company incorporated on 19th October 2011 having CIN U74120DL2011PTC381743. The Authorised share capital for the year ended 31st March 2020 is Rs 3,37,16,000/- divided into 40,000 equity shares of Rs 10 each and 33,31,600 divided into 40,000 equity shares of Rs 10 each and 33,31,600 compulsory convertible cumulative preference shares of Rs 10 each. The Issued, Subscribed and Paid-up share capital is RS 3,06,40,900 divided into 40,000 equity shares of Rs 10 each and 30,24,090 compulsory convertible cumulative preference shares of Rs 10 each fully paid up.

6. In relation to the new private limited (Transferee Company) (Resulting Company). It is a private limited company incorporated on 14th July 2006 having CIN U72900DL2006PTC235208. The Authorised share capital for the year ended 31st March 2020 is Rs 58,20,00,000/- divided into 4,74,00,000 equity shares of Rs 10 each and 10,80,000 compulsory convertible cumulative preference shares of Rs 100 each. The issued, subscribed and paid-up share capital Rs 57,67,95,600 divided into

4,72,07,300 equity shares of Rs 10 each and 10,47,226 compulsory convertible preference shares of Rs 100 each, all fully paid up.

7. The Transferor Company No. 1/ Applicant Number 1 has total 2 shareholders, in relation to them it seeks for dispensing with convening and holding of the meetings for the purpose of obtaining their approval to the proposed Scheme of Amalgamation in view of the consent by way of affidavits having been obtained all of which also been placed on record. Similarly, in view of no secured creditors and there being only four Unsecured Creditors out of which 3 have given their consent in the form of affidavit, their meetings be also dispensed with.

8. The Transferor Company No. 2/ Applicant Number 2 has total 2 shareholders and they have given their consent by way of an affidavit and has no objection to the present scheme, therefore seeking dispensation with the convening and holding of the meetings. Similarly, in view of no secured creditors and there being only one Unsecured Creditor which have given its consent in the form of affidavit, their meeting be also dispensed with.

9. The Demerging Company/ Applicant Company number 3 has total 5 shareholders, 4 Equity Shareholders and 1 Preference Shareholder, out of which 99.91% shareholders consent had been obtained by the way of affidavits, therefore seeking dispensation with the convening and holding of the meetings. Similarly, in view of no secured and unsecured creditors, their meetings are also dispensed with.

10. The Transferee Company (Resultant Company) has 3 Equity Shareholders and 1 Preference Shareholder out of which 99.91% shareholders consent had been obtained by the way of affidavits, therefore seeking dispensation with the convening and holding of the meetings. Similarly, in view of 1 Secured Creditor consent had been obtained by the way of affidavit and 16 Unsecured Creditors for which 100% consent had been obtained by the way of affidavits, therefore their meetings are also dispensed with.

11. In relation to the territorial jurisdiction, Ld. Counsel for the applicant companies submit that since the registered office of the respective companies fall within the purview of Registrar of Companies, NCT, New Delhi, and situated within Delhi, this Tribunal has the necessary territorial jurisdiction to entertain the joint application.

12. We have perused the joint application and the connected documents / papers filed therewith including the Composite Scheme of Arrangement contemplated between the Applicant companies.

13. Both the applicants have filed their Memorandum and Articles of Association inter alia delineating their object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2020and un-audited financial statements for the year ended 28.2.2021.

14. The Board of Directors of the Applicant companies vide meeting held on **3rd May 2021** respectively, have unanimously approved the proposed Composite Scheme of Arrangement as contemplated above

and copies of resolutions passed thereon have been placed on record by the companies.

15. The appointed date as specified in the Scheme is **1st April, 2021** subject to the directions of this Tribunal.

16. Taking into consideration the application filed jointly by the Applicant Companies and the documents filed therewith, this Tribunal propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors, or dispensing with the same as well as issue of notices including by way of paper publication as follows: -

A) In relation to the Transferor Company Number 1

(i) With respect to shareholders:

Since it is represented by the Transferor Company number 1 that there are 2 shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferor Company number 1 that there is no Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company number 1 that there are four Unsecured Creditors in the company, whose consents have been obtained by way of affidavits and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

B) In relation to Transferor Company Number 2

(i) With respect to Shareholders

Since it is represented by the Transferor Company number 2 that there are 2 shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditors

Since it is represented by the Transferor Company number 2 that there is no Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors

Since it is represented by the Transferor Company number 2 that there is one Unsecured Creditor in the company, whose consents have been obtained by way of affidavit and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

C) In relation to Demerging Company/ Applicant Number 3

(i) With respect to Shareholders

Since it is represented by the Demerging Company that there are 5 shareholders in the Company out of which 99.9% consents had been obtained by way of affidavits and are placed on record, the necessity of convening and holding a meeting to consider, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditors

Since it is represented by the Demerging Company that there is no Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors

Since it is represented by the Demerging Company that there is no Unsecured Creditor in the Company, the necessity of convening a meeting does not arise.

D) In relation to Transferee Company:

(i) With respect to shareholders:

Since it is represented by the Transferee Company that there are 4 shareholders in the Company out of which 99.91% consents by way of affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferee Company that there is one Secured Creditor in the Company, whose consent by way of affidavits have been obtained and are placed on record, the necessity of convening a meeting is dispensed with.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferee Company that there are 16 Unsecured Creditors whose consent have been obtained and

placed on record by way of affidavits, the necessity of convening a meeting is dispensed with.

17. The application stands allowed on the aforesaid terms. Let the petition for approval of the composite scheme of Arrangement be filed within a period of seven days from the date of this order.

-S-d-

(NARENDER KUMAR BHOLA)
Member (Technical)

-S-d-

(P.S.N. PRASAD)
Member (Judicial)